

This conduct as pled does not rise to the level of malice, as defined in Civil Code, § 3294(c).

The motion to strike the punitive damages claims is therefore granted with 15 days leave to amend.

Attorney Fees

Attorney's fees are recoverable by a party only if specifically provided for by a statute or law, or if authorized by an express agreement between the parties. (Code Civ. Proc., §§ 1021, 1033.5, subd. (a)(10)(A)-(C); Civ. Code, § 1717; see also *Nasser v. Superior Court* (1984) 156 Cal.App.3d 52, 56 ("Absent an agreement or statute, a party is generally precluded from recovery of attorney fees."); *Reynolds Metals Co. v. Alperson* (1979) 25 Cal.3d 124, 127.)

Plaintiffs cite to Welf. & Inst. Code, § 15657 to support their claim for attorney fees, which states that attorney fees shall be awarded if it is proven that the defendant is liable for physical abuse, neglect or abandonment.

Plaintiffs do not allege facts to support physical abuse, neglect or abandonment.

Therefore, the Court grants the motion to strike the claim for attorney fees with 15 days leave to amend.

Elder Abuse / Financial Elder Abuse Allegations

Defendants move to strike paragraphs 42 and 43 of the fourth cause of action and paragraphs 45 and 46 of the fifth cause of action.

The motion to strike is denied as to paragraph 42. Defendants do not show that this is not a proper

		allegation to support Plaintiffs’ elder abuse claim. The motion is granted as to paragraph 43 as this goes to Plaintiffs’ punitive damages allegations which are not supported by the facts. Defendants’ motion is moot as to paragraphs 45 and 46 given that the Court sustains the demurrer to the fifth cause of action. <i>Injunctive and Declaratory Relief Allegations</i> Defendants restate their arguments made in the demurrer, contending that these allegations should be stricken because they are derivative of Plaintiffs’ other claims. The motion to strike is denied as to these allegations, given that Plaintiffs plead sufficient facts to support their trespass and elder abuse claims. Defendants shall give notice of both rulings.
53	<i>Ignatius vs. Ignatius</i>	The Court denies Defendants Stephen Ignatius, Monica Solorzano, Thomas Rieser, Kirsten Rieser, Villela, Inc.’s motion for attorney’s fees and costs under Code of Civil Procedure section 425.16 from Plaintiff Christina M. Ignatius. The case has a significant and unique procedural history. Moving Defendants brought an initial Anti-SLAPP Motion that was granted in large part on April 1, 2025. (ROA 395, 4/1/2025 Minute Order.) On that same date, Plaintiff was ordered to file and serve a new first amended complaint. (ROA 395, 4/1/2025 Minute Order.) The Court specifically admonished Plaintiff: This first amended complaint must be in compliance with the instant ruling. Plaintiff